

PR-23-000103 Disputed Claim of BERNAL, ALEXIA – Petitioner’s Motion to Reopen Case - GRANTED, and unopposed.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: The Court notes that this motion was untimely filed less than 16 court days before the hearing date, that there is no proof of service for the motion, that there is no proper motion itself (only a notice of hearing and supporting memorandum), that Code of Civil Procedure section 473(b) cannot be applied because more than six months have passed since the date of the order at issue, and that even if section 473(b) were applicable, there is no attorney declaration of fault or proposed corrective document attached. With that stated, the Court has reviewed the case file and can see that the minor’s date of birth as set forth on the Order to Deposit Funds into Blocked Account does not match the date of birth as recorded in the medical records attached to the underlying minor’s compromise petition. Nor does the name on the order fully match. As the former minor has submitted a declaration in support of the motion and therefore consents to the proposed action, and as no one else would be materially affected by this motion, the Court GRANTS the unopposed request to reopen the minor’s compromise case for the limited purpose of correcting the identifying information on the Order to Deposit Funds into Blocked Account. Counsel for the former GAL and former minor to submit a proposed order within five court days that is consistent with this ruling. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23: ***There are no tentative rulings in Department 23*** The following are the tentative rulings for cases calendared before Judge David I. Hood in Department 24:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 7a9f1acbc79afdcc788dd31476d807563ac909731601bc8afe6fd1f376cf5309

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Counsel for the former GAL and former minor to submit a proposed order within five court days that is consistent with this ruling.

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